

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: July 09, 2026

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#	Case Name	Tentative
	2025-1469238 Sais vs. Cubesmart	Motion for Summary Judgment and/or Adjudication Defendant Cubesmart L.P. motion for summary judgment on plaintiff Kathleen Sais' complaint is denied. [ROA #33.] The court exercises its discretion to consider any opposition papers that were served one day late. CRC 3.1300(d). The court notes that Defendant responded substantively and has not shown prejudice. <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 697–698. The court did not consider new evidence submitted on reply. Code Civ. Proc. §437c(b)(4). <u>Facts</u> This case surrounds alleged injuries suffered by Plaintiff when the door of a storage unit she rented from Defendant fell on her. On 9/30/23, Plaintiff visited her unit to remove items. [UMF (ROA #41), no. 10; Deposition of Plaintiff, Kathleen Sais, at pg. 22 lines 2 – 17 (Defendant's COE, ROA #29, Ex. F.) After opening the door

without any issues, Plaintiff and her family then accessed the unit and proceeded to remove items from it for approximately 10 to 15 minutes. [UMF no. 13; Deposition of Plaintiff, Kathleen Sais, at pg. 25 lines 16 – 24; pg. 26 lines 24 -25 ; and pg. 27 lines 1 – 4.]

After those 10 to 15 minutes, Plaintiff heard a loud noise and saw the unit door coming down; it came down on Plaintiff, knocking her to the ground. [UMF nos. 14, 15; Plaintiff's Depo. at 27:18-19, 29:13-19, 30:5-9.]

When Defendant's site manager inspected the door (albeit about three months later in 12/23 when Plaintiff moved out) she observed the spring for the door was broken. [AMF (ROA #54) no. 6; VanderSchoor Depo. (Defendant's COE, Ex. C) at 44:9-16. , lines 9 16; p 44, 21-25, 45:1-4.]

Defendant purchased the storage facility from Storage West sometime in or around December 2021. [UMF no.2; Haynes Depo. (Defendant's COE, Ex. B) at 8:12-16; VandereSchoor Depo. (Defendant's COE Ex. C) at 43:23-25, 44: 1-2.] Plaintiff was a pre-existing renter of the storage unit at that time. [UMF no. 3; Defendant's COE. Ex. D (lease agreement; Andrew Sais Depo (Defendant's COE Ex. E) at 15:8-21; Haynes Depo. at 16:21-25.]

In the two years of Defendant's ownership prior to the incident, Defendant did not inspect the mechanics of the door but only the lock and the outside. [AMF (ROA #54) nos.2, 3; Haynes Depo. at 16:10-25; Husen Decl. (ROA #49), Ex. H (Policies and Procedures Manual) at §§ 6.3, 7.9.]

At deposition, Defendant's PMK took the position that Defendant *could not* inspect the workings of the door. [Haynes Depo. at 29.]

Plaintiff entered into a storage rental agreement with Defendant on 8/8/22. That agreement provides: "Owner may access the Cube for inspections, repairs, or maintenance. Except in an emergency, I will receive advance notice of Owner's intent to access the Cube and, if I do not provide access within 5 days, Owner may remove the lock and access the Cube even if Owner enters the Cube or denies Me access to the Cube." [Defendant's COE, Ex. D (Rental Agreement) at §B(a); Rosales-Calixto Decl. (ROA #31), ¶ 6; Plaintiff Depo. at 19:16-17 and 21-25, 20:17-22, 21:3-17.]

Legal Standard

Under Code of Civil Procedure section 437, a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that

the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1).

A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. “A prima facie showing is one that is sufficient to support the position of the party in question.” *Id.* at 851. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. Code Civ. Proc. § 437c(p)(2).

A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. *Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597. Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence – such as discovery admissions and responses – that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. *Aguilar v. Atlantic Richfield Co.*, 25 Cal.4th at 854-55. *See also Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 (finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery); *Scheidig v. Dinwiddie Const. Co.*(1999) 69 Cal.App.4th 64, 80-81 (finding *Union Bank* rule only applies where discovery requests are broad enough to elicit all such information); *Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1441-1442 (same).

Once the defendant’s burden is met, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. *Villacres v. ABM Industries, Inc.* (2010) 189 Cal. App. 4th 562, 575. To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. *Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163. Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. *Doe v. Salesian Society* (2008) 159 Cal. App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.

Discussion

Negligence

The elements of negligence are: (1) defendant's legal duty to conform to a standard of conduct to protect the plaintiff; (2) defendant failed to meet this standard of conduct; (3) causation; (4) damages. *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.

Premises Liability

The elements of a cause of action for premises liability are: (1) the defendant owned, leased, or occupied the property; (2) the defendant was negligent in the use or maintenance of the property; (3) the plaintiff was harmed, and (4) the defendant's negligence was a substantial factor in causing the plaintiff's harm. CACI 1000.

A person who owns or controls property is negligent if he or she fails to use reasonable care to keep the property in a reasonably safe condition. CACI 1001.

Premises liability is a form of negligence; it is described as follows: The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence. *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619. A person who owns or controls property is negligent if he or she fails to use reasonable care to keep the property in a reasonably safe condition. CACI 1001. "To comply with this duty, a person who controls property must inspect the premises or take other proper means to ascertain their condition and, if a dangerous condition exists that would have been discovered by the exercise of reasonable care, has a duty to give adequate warning of or remedy it." *Staats v. Vintner's Golf Club, LLC* (2018) 25 Cal. App. 5th 826, 833 (internal quote marks and citations omitted).

Additionally, in order to establish a claim for premises liability, a plaintiff must demonstrate: (1) a condition on the property created an unreasonable risk of harm; (2) the defendant knew or, through the exercise of reasonable care, should have known about it; and (3) the defendant failed to repair the condition, protect against harm from the condition, or give adequate warning of the condition. CACI 1003. The property owner may be charged with constructive notice where, under all the circumstances, the condition was of such a nature and existed long enough that he had sufficient time to discover it and could have repaired or protected against the condition. CACI 1011.

A landlord must conduct reasonable periodic inspections of rental property whenever the landlord has the legal right of possession. Before giving possession of leased property to a tenant [or on renewal of a lease] [or after

retaking possession from a tenant], a landlord must conduct a reasonable inspection of the property for unsafe conditions and must take reasonable precautions to prevent injury due to the conditions that were or reasonably should have been discovered in the process. The inspection must include common areas under the landlord's control.

After a tenant has taken possession, a landlord must take reasonable precautions to prevent injury due to any unsafe condition in an area of the premises under the landlord's control if the landlord knows or reasonably should have known about it.

[CACI 1006.]

Landlords are subject to negligence liability for injuries resulting from defects and dangerous conditions that could have been discovered through a reasonable inspection at the time the lease was executed. *Swanberg v. O'Mectin* (1984) 157 Cal.App.3d 325, 330. "A landlord at time of letting may be expected to inspect an apartment to determine whether it is safe, and will be subject to liability for those matters which would have been disclosed by a reasonable inspection." *Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1606 (citations and internal quote marks omitted). *Burroughs v. Ben's Auto Park, Inc.* (1945) 27 Cal.2d 449, 453-454, 164 P.2d 897 ("An agreement to renew a lease or relet the premises does not deprive the lessor of the right of reentry on the expiration of the old term and consequently cannot relieve the lessor of his duty to see that the premises are reasonably safe at that time").

In her complaint, Plaintiff alleges that Defendant "knew or should have known" about the dangerous condition of the door. [Complaint, ¶GN-1, Prem.L – 1.] For summary judgment purposes, this is sufficient to require Defendant to negate the allegation that it had knowledge – that is, make a prima facie showing that it did not have knowledge – in order to obtain summary judgment.

Defendant has not made this showing. Defendant points to the testimony of Todd Hayes, who testified as Defendant's PMK, and of Lynn VanderSchoor, its on site manager. [Haynes Depo. (Defendant's COE, Ex. B) at 16, 29; VandereSchoor Depo. (Defendant's COE Ex. C) at 33.] But this testimony is simply that Defendant and its employees did not inspect the unit; it is not an unequivocal denial of knowledge.

Accordingly, Defendant has failed to make a prima facie showing that it did not know of the dangerous condition of the door.

		Defendant relies heavily on the fact that it did not inspect the unit and the condition of the door (as opposed to a door check to make sure it was locked). [Haynes Depo. at 16, 29, VandereSchoor Depo at 33.] Haynes testified it could conduct such an inspection because Plaintiff was in possession already. [Haynes Depo. at 29.] But this is not factually correct, given the term of the lease agreement that provides for Defendant's access to inspect the unit. [Defendant's COE, Ex. D (Storage Rental Agreement) at §B(a); Rosales-Calixto Decl. (ROA #31), ¶ 6; Plaintiff Depo. at 19:16-17 and 21-25, 20:17-22, 21:3-17.] At least as important, this position is not correct as a matter of law. Defendant and Plaintiff entered into a renewal rental agreement in 2022, after Defendant acquired the premises. [Defendant's COE Ex. D (Storage Rental Agreement); Plaintiff Depo. at 19:16-17 and 21-25, 20:17-22, 21:3-17.] As set forth above, at that point Defendant had the right to re-enter and inspect the unit. Even more to the point, it had the duty to do so. <i>Burroughs v. Ben's Auto Park, Inc.</i> (1945) 27 Cal.2d 449, 453-454; CACI 1006. Having failed to inspect the property upon renewal of Plaintiff's rental of the storage unit on 8/8/2022, Defendant is subject to liability for any dangerous condition it could have discovered then. Because Defendant has not made a prima facie showing that the condition of the door that resulting in it falling on Plaintiff could not have been detected by inspection in August of 2022, it has not made a prima facie showing that it did not have constructive knowledge of the dangerous condition. Based on all of the above, Defendant's motion for summary judgment is denied.
	2023-1363391 Baselyos vs. Stumbaugh & Associates, Inc.	Plaintiff's Motion in Limine No. 1 is GRANTED IN PART and DENIED IN PART. The request to prohibit Defendant from presenting <u>any</u> evidence or argument concerning Plaintiff's comparative negligence is DENIED. Whether Defendant ultimately proves comparative negligence is for the jury. Plaintiff's motion improperly seeks to eliminate an affirmative defense through an evidentiary motion. The motion is GRANTED to the extent Defendant, or any witness, may not argue or testify that Plaintiff was "on his phone" absent competent admissible evidence establishing that fact. Buchanan's statement that Plaintiff's head was "down like he was on a phone" is

speculative insofar as it attributes a cause for Plaintiff's head position.

The Court reserves ruling on the admissibility of Buchanan's written incident report as a whole until Defendant establishes an adequate evidentiary foundation outside the presence of the jury. The Court is not persuaded on the present record that the entire narrative is admissible under either the business-record exception or the state-of-mind exception. If Defendant seeks admission of the report, the Court will conduct an Evidence Code section 402 hearing addressing the applicable hearsay exceptions and any hearsay-within-hearsay issues.

Plaintiff's Motion in Limine No. 2 is GRANTED IN PART and DENIED IN PART.

Biomechanical/general causation opinions: GRANTED. Dr. Triggs may not testify regarding accident reconstruction, collision forces, Delta-V, biomechanical injury thresholds, or general biomechanical causation. He may testify regarding orthopedic diagnosis, specific medical causation, and the significance of the clinical findings within his area of expertise.

Cluneal nerve opinions: DENIED insofar as Plaintiff seeks wholesale exclusion. Dr. Triggs may criticize the diagnosis and treatment based upon his orthopedic training and review of the records. However, he may not present himself as an expert in peripheral nerve stimulation or testify beyond the scope of his demonstrated expertise.

Medical billing opinions: GRANTED IN PART. Dr. Triggs may testify regarding medical necessity and based upon his experience, whether treatment appeared reasonable or excessive. Detailed reimbursement and billing opinions duplicative of Defendant's retained billing expert are excluded under Evidence Code section 352.

Malingering opinions: GRANTED IN PART. Dr. Triggs may describe objective examination findings, symptom magnification, Waddell or nonorganic signs, and inconsistencies between subjective complaints and objective findings. He may not characterize Plaintiff as a "malingeringer" absent an adequate foundation established outside the presence of the jury.

General commentary regarding personal injury litigation, plaintiffs' attorneys, greed, or the "personal injury arena": GRANTED. Such commentary is irrelevant, unduly prejudicial, and does not assist the trier of fact.

Plaintiff's Motion in Limine No. 3 is GRANTED IN PART and DENIED IN PART. Defendant may not introduce plaintiff's general work history, timekeeping records, job duties, employment gaps, or other personnel matters unless independently relevant to a disputed issue. However, defendant may impeach plaintiff with the fact that he was terminated by prior employers for alleged falsification/fraudulent documentation, subject to proper foundation and Evidence Code section 352.

The examination should be brief. The Court will not permit "mini-trials" into HR investigations, nor a parade of personnel records. Argument that plaintiff is a "bad employee" or generally dishonest in life is precluded. If plaintiff denies the misconduct, defendant may use, subject to otherwise applicable hearsay objections, admissible business records or PMK testimony to establish the fact of the termination and stated reason, but the Court will limit cumulative or collateral detail.

Plaintiff's Motion in Limine No. 4 is GRANTED IN PART and DENIED IN PART. The motion is GRANTED insofar as defendant may not impeach plaintiff with the fact of a felony conviction that was dismissed pursuant to Penal Code section 1203.4. Evidence Code section 788(c) does not permit impeachment by such a dismissed conviction. The motion is DENIED, however, to the extent plaintiff seeks exclusion of all evidence relating to post-accident events that bear on damages. Defendant may introduce otherwise admissible evidence that plaintiff engaged in physically demanding activities after the accident, that he reported no disabling condition during jail intake, and that he later sustained an intervening head and neck injury while incarcerated, as those matters are relevant to the nature, extent, and causation of plaintiff's claimed injuries.

Pursuant to Evidence Code section 352, defendant shall not refer to plaintiff as a "convicted felon," disclose that the conviction was for robbery, or present unnecessary details concerning the criminal offense unless plaintiff opens the door or the Court determines outside the presence of the jury that such details become necessary for a non-character purpose. Likewise, the Court expects the parties to sanitize references to plaintiff's incarceration to the extent practicable while still permitting defendant to present its alternative-causation evidence.

Plaintiff's Motion in Limine No. 5 is GRANTED IN PART. Defendant seeks admission of the incident report primarily under the business records exception (Evid. Code, § 1271) and the state-of-mind exception (Evid. Code, § 1250). Plaintiff is opposed. On the present record, the Court is not persuaded that either exception

permits admission of Buchanan's written narrative in its entirety. Although the report may have been prepared in the ordinary course of Defendant's business, the handwritten narrative describing the accident and assigning fault constitutes hearsay within hearsay. Defendant has not established that the narrative itself falls within the business records exception or another applicable hearsay exception. Likewise, the Court is not persuaded that the narrative is admissible under Evidence Code section 1250, as it is offered to prove historical facts concerning how the accident occurred rather than Buchanan's then-existing mental or emotional state.

Accordingly, Defendant may not introduce Buchanan's written accident narrative in its entirety. The Court reserves ruling on any discrete statement that Defendant contends is independently admissible under a properly supported evidentiary theory. Before eliciting testimony concerning any specific statement contained in the report, Defendant shall first alert the Court outside the presence of the jury so that the Court may determine admissibility.

Plaintiff's Motion in Limine No. 6 is DENIED.

Dr. Harvey is qualified under Evidence Code section 720 to testify as an expert in life care planning and future care cost analysis. Plaintiff's arguments largely concern the weight of her opinions rather than their admissibility. The Court is satisfied that Dr. Harvey may rely upon the opinions of qualified physicians in formulating her life care planning opinions, as experts commonly rely upon information of a type reasonably relied upon in their respective fields.

The Court notes, however, that Dr. Harvey may not offer independent opinions concerning medical diagnosis, medical causation, or the medical necessity of particular treatments. Her testimony shall remain within the scope of her disclosed expertise as a life care planner. She may testify regarding future care planning, the projected costs of care, accepted life care planning methodology, and the consequences of accepting the medical opinions upon which she relies. She may also critique Plaintiff's life care plan from a life care planning perspective. She may not independently opine that Plaintiff did or did not require specific medical procedures or otherwise substitute her own medical judgment for that of qualified physicians.

The request for an Evidence Code section 402 hearing is denied without prejudice. The Court will entertain any specific objections should Defendant attempt to elicit testimony outside the permissible scope of Dr. Harvey's expertise.

Plaintiff's Motion in Limine No. 7 is GRANTED IN PART and DENIED IN PART.

Dr. Franc is qualified under Evidence Code section 720 to testify as an expert neurologist concerning neurological diagnosis, medical causation, differential diagnosis, concussion, traumatic brain injury, neurologic symptoms, neurological examination findings, and the consistency of Plaintiff's medical records with the claimed neurological injuries. He may also testify regarding matters within the ordinary practice of neurology, including his opinions concerning whether Plaintiff's reported presentation is medically consistent with concussion or traumatic brain injury.

However, Dr. Franc shall not offer opinions amounting to accident reconstruction or biomechanical engineering. He may not testify regarding Delta-V, crush analysis, vehicle speed, occupant kinematics, engineering force calculations, or that the collision generated insufficient mechanical forces to produce injury where such opinions are not based upon expertise or methodology in those disciplines. Nor may he characterize the collision as "low impact," "minor," "glancing," or otherwise insufficient to produce injury if those characterizations are offered as engineering conclusions rather than medical observations grounded in the medical evidence. Dr. Franc also shall not speculate concerning unidentified alternative causes of Plaintiff's reported loss of consciousness. He may testify that, in his opinion, the reported loss of consciousness is not medically explained by the collision, but he may not suggest seizure disorder, diabetic shock, substance use, or other alternative medical causes unless he can express such opinions to a reasonable degree of medical probability and they have an adequate evidentiary foundation. To permit otherwise would be to invite speculative testimony.

Plaintiff's Motion in Limine No. 8 is DENIED.

Plaintiff seeks to exclude the testimony of Sergeant Dylan Foley of the Ventura County Sheriff's Office concerning the booking procedures employed at the East Valley jail facility following Plaintiff's May 2022 arrest. Plaintiff contends Sergeant Foley lacks personal knowledge of Plaintiff's physical condition, is unqualified to offer medical opinions, and that any such testimony is irrelevant, speculative, and unduly prejudicial.

As an initial matter, the Court notes that substantial portions of Defendant's amended opposition (ROA 197) appear directed to the admissibility of Brandon Buchanan's written incident report under various hearsay exceptions rather than to the admissibility of Sergeant Foley's testimony (beginning at page 3, line 20). Those portions of the opposition do not address the issues raised by Plaintiff's Motion in Limine No. 8 and have not been considered in resolving this motion.

Turning to the merits, the Court concludes Sergeant Foley may testify concerning the customary booking and medical-screening procedures utilized at the Ventura County East Valley jail facility based upon his training and experience. Pursuant to Evidence Code section 1105, evidence of an organization's routine practice or customary procedures may be admissible as circumstantial evidence of conduct on a particular occasion, and Sergeant Foley possesses sufficient personal knowledge of those procedures to testify regarding them. His testimony in that regard is not offered as expert medical opinion but as evidence of institutional custom and practice.

The Court agrees, however, that Sergeant Foley may not speculate regarding matters outside his personal knowledge. Sergeant Foley acknowledged during his deposition that he was not present for Plaintiff's arrest or booking, did not observe Plaintiff, does not know what Plaintiff reported during the medical screening, does not know the specific questions asked, does not know what information was conveyed to the booking nurse, and does not know whether Plaintiff's particular complaints would or would not have resulted in refusal of booking at the East Valley facility.

Accordingly, Sergeant Foley may testify regarding the customary booking procedures at the East Valley jail facility, the general medical-screening process, the distinction between East Valley and the Pre-Trial Detention Facility; and the circumstances under which arrestees are ordinarily redirected for medical reasons based upon his knowledge of those procedures.

Sergeant Foley may not testify that Plaintiff in fact had no disabling condition, that Plaintiff reported no significant medical issues, or that Plaintiff's booking establishes that Plaintiff did not suffer the injuries alleged in this action. Nor may Sergeant Foley speculate regarding what occurred during Plaintiff's particular booking process or the medical conclusions that should be drawn from it. The Court further concludes that the probative value of Sergeant Foley's properly limited testimony is not substantially outweighed by the danger of undue prejudice under Evidence Code section 352. To minimize any such prejudice, counsel shall avoid unnecessary reference to the nature of the underlying criminal investigation or charges except as otherwise permitted by the Court's rulings on related motions in limine.

Plaintiff's request for an Evidence Code section 402 hearing is denied. Sergeant Foley's deposition adequately defines both the scope of his personal knowledge and the limitations of his anticipated testimony. Any objection that Defendant elicits

testimony beyond those limits may be raised contemporaneously at trial.

Plaintiff's Motion in Limine No. 9 is GRANTED IN PART and DENIED IN PART.

The Court declines to deny the motion as untimely. Although Plaintiff did not apparently comply with the timing contemplated by Local Rule 317, Defendant has filed a comprehensive opposition addressing the merits, and the Court finds no sufficient showing of prejudice warranting denial of the motion on procedural grounds alone.

Dr. Wobrock is qualified to testify as an expert in accident reconstruction and biomechanics. He may testify regarding collision dynamics, Delta-V, occupant kinematics, biomechanical principles, and whether the forces generated by the subject collision are generally consistent or inconsistent with particular categories of injury.

However, Dr. Wobrock may not offer independent medical opinions concerning diagnosis, medical causation, or whether Plaintiff in fact did or did not sustain any particular injury. Thus, he may not testify that Plaintiff did not sustain, could not have sustained, or more likely than not did not sustain the diagnosed injuries alleged in this action, including concussion, traumatic brain injury, cluneal neuropathy, or other diagnosed medical conditions. Such opinions exceed the proper scope of biomechanical testimony.

The motion is DENIED insofar as Plaintiff seeks to exclude testimony regarding occupant kinematics. Challenges concerning the assumptions underlying Dr. Wobrock's opinions, including Plaintiff's posture, body position, and pre-impact movements, go to the weight of the testimony rather than its admissibility and may be explored through cross-examination.

The motion is likewise DENIED as to the use of demonstrative animation, provided Defendant first establishes that the animation is offered solely as a demonstrative aid illustrating Dr. Wobrock's opinions and not as a recreation or simulation of the actual collision. The animation shall not be represented as depicting what actually occurred, and the Court will provide an appropriate limiting instruction upon request.

Finally, the Court concludes that Dr. Wobrock may testify regarding the biomechanical forces involved in the collision but may not present opinions concerning the absence of a biomechanical mechanism for Plaintiff's specific cluneal nerve injury insofar as

those opinions are not shown to rest upon reliable biomechanical literature or methodology specific to that condition.

The Court denies Plaintiff's request for an Evidence Code section 402 hearing. Once more, the Court concludes that the deposition testimony sufficiently defines the scope of Dr. Wobrock's opinions, and any objection that his testimony exceeds those limits may be raised contemporaneously at trial.

Plaintiff's Motion in Limine No. 10 is DENIED, except as set forth below.

The Court rejects Plaintiff's request to exclude Nicholas Samuels and Mark Groce solely on the basis that they were not identified in response to Form Interrogatory No. 12.1. The Court is not persuaded that the interrogatory required disclosure of witnesses whose anticipated testimony concerns Plaintiff's post-accident physical condition rather than the accident itself, nor does the Court find a willful discovery violation warranting the sanction of exclusion.

The Court further concludes that testimony concerning Plaintiff's physical abilities and functional capacity after the subject accident is relevant to Plaintiff's claims for personal injury damages. To the extent Messrs. Samuels and Groce possess firsthand observations of Plaintiff's physical activities contemporaneously subsequent to the incident allegedly giving rise to the injuries which form the basis of the suit, those observations are admissible.

However, the Court finds that the substantial danger of undue prejudice under Evidence Code section 352 requires significant limitations. The witnesses shall not testify regarding the nature of Plaintiff's alleged criminal conduct, the details of any robbery, Plaintiff's plea or conviction, or other matters offered solely to portray Plaintiff as a person of bad character. Similarly, Mr. Groce shall not testify concerning unrelated employment discipline, performance evaluations, or other character evidence absent further order of the Court. Testimony shall be confined to personal observations bearing on Plaintiff's physical capabilities and limitations.

Before either witness is called, the Court is inclined to conduct an Evidence Code section 402 hearing outside the presence of the jury to define the permissible scope of the testimony and to ensure compliance with Evidence Code section 352.

Defendant's Motion in Limine No. 1 is GRANTED IN PART and DENIED IN PART.

Defendant seeks a blanket order excluding all testimony concerning two post-accident telephone conversations between (now deceased)

Brandon Buchanan and Jason Baselyos. The Court declines to issue such a blanket ruling. The conversations allegedly included multiple distinct categories of statements, including factual descriptions of the accident, expressions of sympathy, alleged admissions regarding fault, offers to pay for damages, and discussions concerning insurance. Those statements do not all stand or fall together under the Evidence Code.

Evidence Code section 1152 plainly precludes evidence of offers to compromise, including offers to pay cash, installment proposals, or similar settlement discussions, when offered to prove liability. Likewise, expressions of sympathy falling within Evidence Code section 1160 are inadmissible to prove liability. The Court declines, however, to exclude all remaining statements on that basis alone.

Whether particular statements constitute admissible declarations against interest under Evidence Code section 1230 or otherwise satisfy an applicable hearsay exception cannot be determined categorically from the present record. The Court is not persuaded that the spontaneous statement exception under Evidence Code section 1240 plainly applies to either conversation.

Ordinarily, determining whether a declarant is “under the stress of excitement” would be established by and through testimony from that declarant concerning his state at the time of utterance. Such a mechanism is obviously unavailable here. However, circumstantial evidence may permit such inferences, but only upon the introduction of testimony, presumably in a 402 hearing.

Accordingly, the motion is GRANTED as to evidence of settlement offers, offers of payment, installment proposals, and similar compromise discussions. In all other respects, the motion is DENIED WITHOUT PREJUDICE. Before any testimony concerning Buchanan’s alleged statements is elicited, counsel shall inform the Court outside the presence of the jury. If necessary, the Court will conduct a 402 hearing, whereafter the Court will rule statement-by-statement on any hearsay objections and applicable exceptions.

Defendant’s Motion in Limine No. 2 is GRANTED IN PART. Defendant seeks to exclude testimony and documentary evidence concerning Brandon Buchanan’s alleged statements at the accident scene, including references contained in Plaintiff’s medical records. The Court concludes that the motion has merit in substantial part.

Plaintiff may not testify that Brandon Buchanan told him he had “passed out” or otherwise lost consciousness for the truth of that

assertion. The statement constitutes hearsay. The Court is not persuaded on the present record that Plaintiff has established an applicable hearsay exception under either Evidence Code section 1230 or section 1240. The alleged statement that Plaintiff lost consciousness is not itself a declaration against pecuniary or civil interest, and Plaintiff has not established the foundational requirements for admission as a spontaneous statement. Plaintiff's interpretation of Evidence Code section 1240 would permit anything said "under the stress of excitement" to be received over a hearsay objection. But 1240's threshold requirements go beyond merely establishing the mental state of the declarant at the time a statement is made.

To the extent Plaintiff's medical records repeat Plaintiff's account that Buchanan told him he had passed out, those references constitute hearsay within hearsay. Plaintiff argues that statements contained in medical records are "business records" (Opposition, page 4, lines 22-23). The Court disagrees. Because Plaintiff has not established an applicable hearsay exception for the underlying statement attributed to Buchanan, those portions of the medical records shall be redacted before publication to the jury.

The motion is also GRANTED as to testimony that Buchanan was cursing, angry, or discussing his employer or employment immediately after the collision. Such evidence has minimal probative value and presents a substantial danger of unfair prejudice under Evidence Code section 352.

The Court's ruling does not extend to every statement allegedly made by Buchanan at the scene. If Plaintiff contends a particular statement is independently admissible under a recognized hearsay exception or for a non-hearsay purpose, counsel shall alert the Court outside the presence of the jury before eliciting that testimony.

Defendant's Motion in Limine No. 3 is GRANTED.

The Court is in receipt of Plaintiff's NOTICE OF NON-OPPOSITION (ROA 94). Defendant's motion in limine no. 3 is accordingly GRANTED.

Defendant's Motion in Limine No. 4 is GRANTED.

The Court will exclude evidence, testimony, and argument concerning the existence or nonexistence of liability insurance offered to prove negligence or wrongdoing. (Evid. Code, § 1155.) Counsel shall admonish all witnesses not to volunteer any reference to insurance and shall refrain from mentioning insurance during voir dire, opening statement, examination of witnesses, or closing argument unless the Court first determines outside the presence of

the jury that such evidence has become admissible for a purpose permitted by law.

Defendant's Motion in Limine No. 5 is GRANTED.

The Court is in receipt of Plaintiff's NOTICE OF NON-OPPOSITION (ROA 96). Defendant's motion in limine no. 5 is accordingly GRANTED.

Defendant's Motion in Limine No. 6 is GRANTED.

Plaintiff shall not refer to or introduce evidence concerning Brandon Buchanan's prior criminal convictions or other criminal history during voir dire, opening statement, examination of witnesses, or closing argument. On the present record, the Court finds that Plaintiff has not demonstrated a permissible non-character purpose for introducing such evidence. In any event, the probative value of the proposed evidence is minimal and is substantially outweighed by the danger of undue prejudice, confusing the issues, and misleading the jury under Evidence Code section 352.

The Court recognizes that, under appropriate circumstances, the credibility of an hearsay declarant may be attacked if the declarant's out-of-court statements are admitted into evidence. (Evid. Code, § 1202; *People v. Jacobs* (2000) 78 Cal.App.4th 1444.) Accordingly, this ruling is without prejudice to Plaintiff requesting reconsideration outside the presence of the jury should Defendant later introduce admissible hearsay statements by Mr. Buchanan such that impeachment of the declarant under Evidence Code section 1202 becomes genuinely at issue.

Defendant's Motion in Limine No. 7 is DENIED.

Defendant seeks an evidentiary sanction precluding Plaintiff from presenting evidence concerning his alleged inability to participate in martial arts or exercise at his gym based upon Plaintiff's alleged misuse of the discovery process. The Court declines to impose the requested sanction.

Although Plaintiff's April 2, 2026, correspondence instructed the subpoenaed entities not to produce records absent further agreement or court order, the following day the Court continued trial and expressly ordered that all discovery deadlines would be recalculated from the new June 1, 2026, trial date. As a result, the original basis for Plaintiff's timing objection no longer existed. From that point forward, Defendant had ample opportunity to pursue production of the requested records by re-serving the subpoenas, meeting and conferring with Plaintiff, seeking compliance from the subpoenaed entities, or pursuing appropriate relief under the discovery statutes. Defendant did none of those things before trial.

		The Court does not condone either party's handling of the subpoena dispute. Plaintiff could have clarified that the timing objection had been rendered moot following the continuance, and Defendant could have pursued the available statutory procedures to obtain the requested records. On this record, however, the Court cannot conclude that Plaintiff engaged in the type of willful discovery misuse warranting the extraordinary evidentiary sanction Defendant seeks. The requested sanction would substantially impair Plaintiff's ability to present evidence concerning an element of his claimed damages. Under these circumstances, such a sanction would be disproportionate to the conduct at issue. The motion is therefore DENIED.